

CLARIFICATION REGARDING INABILITY TO CAPTURE COMPLETE DETAILS IN THE "OTHERS"
CLAUSE OF E-FORM INC-34 DUE TO CHARACTER LIMITATION

We are filing e-Form INC-34 in connection with the alteration of the Articles of Association of **Pointer8 Technologies Private Limited**.

The Company is altering the Articles of Association to replace the SAFE Agreement with the Shareholders Agreement under the "**Others**" clause of the Articles of Association.

However, owing to the character limitation prescribed in the relevant field of e-Form INC-34, it has not been possible to reproduce all the clauses in the form. Accordingly, only the clauses to the extent permitted by the system has been entered in the e-Form.

For the sake of completeness and to avoid any ambiguity, the clauses that could not be incorporated in the e-Form due to the aforesaid technical limitation are mentioned below:

4. SHAREHOLDERS' MEETING

4.2 Quorum

- a) A valid quorum for a meeting of the Shareholders shall be constituted as provided under the Act.
- b) If a quorum as required under Article 4.2(a) is not present within 30 (thirty) minutes of the scheduled time for any Shareholders' meeting or ceases to exist at any time during such meeting (a "**Non-quorate Shareholder Meeting**"), then and in that event, the Non-quorate Shareholder Meeting shall automatically stand adjourned to the same day and time 7 (seven) days later (the "**Adjourned Shareholder Meeting**") and shall have the same agenda as the Non-quorate Shareholder Meeting, and nothing further as regards such agenda.
- c) If, at the Adjourned Shareholder Meeting as well, no valid quorum as required under Article 4.2(a) is present, then, and in such event, the Shareholders present at such Adjourned Shareholder Meeting shall be deemed to constitute a valid quorum and the Shareholders may proceed to discuss and decide on the matters on the same agenda as Non-quorate Shareholder Meeting. Any decisions so taken in the Adjourned Shareholder Meeting shall be binding.

4.3 Each of the Shareholders, hereby, undertake to ensure that its representatives, proxies and agents (appointed by power of representation given in writing) representing them at general meetings shall at all times exercise their votes in respect of the Securities in such manner so as to comply with, and to fully and effectually implement, the provisions of the Transaction Documents and to participate in such general meetings.

5. COVENANTS OF THE FOUNDER GROUP AND THE COMPANY

- 5.1** The Company shall procure that the Founder Group shall devote all their professional time to the management and operations of the Company, and all of their efforts in the Business shall be solely for the benefit of the Company.
- 5.2** The Company and VS hereby undertakes and covenants to the Existing Shareholders as follows:
- 5.2.1** Conduct of Business. The Founder Group shall take its best efforts to ensure that the Company carries on and conducts its Business in accordance with the applicable Laws.
- 5.2.2** Intellectual Property Protection. The Company shall take all commercially necessary steps to protect its material Intellectual Property rights, including registering all trademarks, patents, designs, trade secrets, brand names and copyrights, as may be appropriate. The Company and the Founder Group shall use reasonable endeavours to cause the employees, officers and the Directors of the Company to enter into such agreements or undertakings as may be necessary for protecting its Intellectual Property. For the sake of clarity, it is averred that the Company shall be the owner of all Intellectual Property used by the Company for its Business, free and clear of any Encumbrance.
- 5.2.3** Compliance with Applicable Laws: The Company shall, and the Founder Group shall use reasonable endeavours to cause the Company to, comply with all applicable Laws in all material respects in relation to the Business.
- 5.2.4** Permits and Approvals: The Company shall use commercially reasonable endeavours to obtain, maintain and comply with all material permits and approvals required for the conduct of the Business.
- 5.2.5** Insurance: The Company shall endeavour to obtain and maintain such insurance coverage as is reasonably appropriate for the nature of the Business, having regard to prevailing industry practices from time to time.

6. PRE-EMPTIVE RIGHTS

- 6.1** Each of the Existing Shareholders shall, in any subsequent offering of Securities by the Company (including by way of a preferential issue or a rights issue but not including employee stock options or sweat equity shares issued as approved by the Board), have pro-rata rights

to subscribe to any further Issuance and to maintain their respective shareholding percentages in the Company, on a Fully Diluted Basis.

6.2 The Company shall offer such Securities in a further Issuance ("**New Securities**") to each Existing Shareholder by sending a written notice to each such Existing Shareholder (the "**Pre-emptive Notice**"), which Pre-emptive Notice shall provide all the relevant information pertaining to such further Issuance including but not limited to (i) the number of New Securities proposed to be issued; (ii) the terms of such further Issuance; and (iii) the proposed subscription price per New Securities proposed to be issued (the "**Proposed Price**").

6.3 If any of the Existing Shareholders decide to exercise their pre-emptive right, within a period of 15 (fifteen) days after receipt of the Pre-emptive Notice, such Existing Shareholder shall have the right to subscribe to the New Securities in proportion to the inter-se shareholding of such Existing Shareholder in the Company ("**Pre-emption Securities**"), on a Fully Diluted Basis, at the Proposed Price and upon the same terms and conditions set forth in the Pre-emptive Notice.

6.4 The right of the Existing Shareholders to subscribe to the Pre-emption Securities shall be exercisable by delivery of a written notice by such Existing Shareholder to the Company of the exercise thereof, prior to the expiration of the 15 (fifteen) days period from receipt of the Pre-emptive Notice, which notice shall state the maximum amount of Pre-emption Securities that such Existing Shareholder elects to subscribe. The failure of an Existing Shareholder to respond within such 15 (fifteen) day period shall be deemed to be a waiver of the pre-emptive right by such Existing Shareholder in respect of the Issuance of the Pre-emption Securities.

6.5 In the event, any of the Existing Shareholders agree to subscribe to less than its pro-rata share of the Pre-emption Securities or waives its pre-emptive right, the remaining Pre-emption Securities not taken up by such Existing Shareholder due to refusal or waiver, as the case may be, ("**Unsubscribed Securities**") shall be offered by the Company to the other Shareholders, on the same terms and conditions as set out in the Pre-emptive Notice, pro-rata to their shareholding in the Company (in case more than one Shareholder exercises the right to acquire the Unsubscribed Securities).

7. TRANSFER PROVISIONS

7.1 The Existing Shareholders shall not, directly or indirectly, Transfer the Securities to any Person except as provided for or permitted in these Articles and any Transfers in violation of the same shall be null and void *ab initio*. The Company shall not register such Transfer and shall also reject any such Transfer made or attempted, suo moto.

7.2 Transferability of Existing Shareholders' Securities.

- 7.2.1 Subject to Article 8 (*Founder Group' Right of First Offer*), the Securities owned by the Existing Shareholders shall be freely transferable to any Person, other than to a Person engaged in a Competing Business.
 - 7.2.2 The Company and VS hereby agree to do all such acts and deeds in order to facilitate the sale of the Existing Shareholders' Securities including providing customary representations and warranties relating to the business and operations of the Company, as may be required.
- 7.3 Any Transfer of the Securities held by the Founder Group, shall be subject to the restrictions set out in Article 9 (*Existing Shareholders' Tag-Along Right*)
- 7.4 Deed of Adherence: Any Person to whom Securities are Transferred by a Shareholder in accordance with the provisions of these Articles shall execute a Deed of Adherence in the form provided in **Schedule 2** of the SHA in relation to the Transfer of such Securities, agreeing that he/ she/ it will observe, perform and be bound by all the terms of the SHA that were applicable to the Transferor immediately prior to such Transfer, unless otherwise determined by the Board based on the nature of the transferee and the then existing circumstances.

8. **FOUNDER GROUP'S RIGHT OF FIRST OFFER**

- 8.1 If any of the Existing Shareholders (each a "**ROFO Seller**") intends to Transfer any of the Securities held by them in the Company ("**ROFO Shares**") to any Permitted Third Party, then any member of the Founder Group, either by themselves or through their nominees or Affiliates (each a "**ROFO Purchaser**"), shall have a right of first offer to purchase the ROFO Shares in the manner set out hereunder.
- 8.1.1 The ROFO Seller shall give a written notice ("**ROFO Offer**") addressed to the Founder Group with a copy to the Company. The ROFO Offer shall state the total number of Securities the ROFO Seller is proposing to Transfer.
 - 8.1.2 Within a period of 30 (Thirty) days of receipt of the ROFO Offer ("**ROFO Exercise Period**") from the ROFO Seller, the ROFO Purchaser shall have the right (but not an obligation) to purchase all but not less than all of the ROFO Shares on pro rata basis and shall exercise such right by way of a written offer addressed to the ROFO Seller ("**ROFO Exercise Notice**"). The ROFO Exercise Notice shall

specify the price per ROFO Share at which the ROFO Purchaser is offering to purchase the ROFO Shares ("**ROFO Price**").

- 8.1.3 Upon receipt of the ROFO Exercise Notice within the ROFO Exercise Period, the ROFO Seller shall, within 15 (fifteen) days from receipt of the ROFO Exercise Notice ("**ROFO Acceptance Period**"), have the right, but not the obligation, to either: (i) accept the ROFO Exercise Notice by written notice to the ROFO Purchaser ("**ROFO Acceptance Notice**"); or (ii) to reject the ROFO Exercise Notice (either expressly by written notice to the concerned ROFO Purchaser ("**ROFO Rejection Notice**"), or by failing to deliver the ROFO Acceptance Notice within the ROFO Acceptance Period).
- 8.1.4 In the event the ROFO Seller accepts the ROFO Exercise Notice, the ROFO Seller shall Transfer the ROFO Shares to the ROFO Purchaser upon receipt of ROFO Price from the ROFO Purchaser, and the ROFO Purchaser shall remit the ROFO Price to the ROFO Seller within 30 (Thirty) days from the date of issuance of ROFO Acceptance Notice
- 8.1.5 In the event the ROFO Seller rejects the ROFO Exercise Notice by issuing a ROFO Rejection Notice or fails to deliver a ROFO Acceptance Notice, in accordance with this Article 8, the ROFO Seller shall be entitled to sell all the ROFO Shares to any Permitted Third Party only at a price that is higher than the ROFO Price. Upon any Permitted Third Party offering/accepting a price for the ROFO Shares (such price not being less than the ROFO Price), the ROFO Seller shall forthwith communicate such price to the ROFO Purchaser ("**Revised ROFO Price**"), and the ROFO Purchaser shall have 15 (fifteen) days from the date of receipt of such communication ("**Matching ROFO Date**") to match the Revised ROFO Price for the ROFO Shares by way of issuing a written notice to the ROFO Seller ("**Matching ROFO Acceptance Notice**"). If the ROFO Purchaser issues the Matching ROFO Acceptance Notice by the Matching ROFO Date, the ROFO Purchaser and the ROFO Seller shall be bound to consummate the Transfer of the ROFO Shares within a period of 30 (thirty) days from the receipt of the Matching ROFO Acceptance Notice. In the event the ROFO Purchaser does not issue the Matching ROFO Acceptance Notice by the Matching ROFO Date, the ROFO Seller shall be free to Transfer the ROFO Shares to the Permitted Third Party.

9. EXISTING SHAREHOLDERS' TAG-ALONG RIGHT

- 9.1 In the event any member of the Founder Group ("**Transferring Shareholder**") proposes to Transfer Securities to any Third Party, and where such Transfer would result in the aggregate Shareholding Percentage of the Founder Group falling below 51% (fifty-one percent) of the Securities on a Fully Diluted Basis, the Existing Shareholders shall have a

right to Transfer the Securities held by them on a Fully Diluted Basis, in a manner proportionate to their inter-se shareholding in the Company, simultaneously to such Third Party on the same terms ("**Tag-Along Right**") as that of the Transferring Shareholder. The Existing Shareholders may exercise the Tag-Along Right by sending a written intimation to the Transferring Shareholder within 30 (Thirty) days of receipt of the offer notice ("**Tag-Along Notice**").

- 9.2 In the event the Founder Group collectively Transfers all (not less than all) of their Securities, each Existing Shareholder shall have the right to Transfer all of his / her / its Securities simultaneously with the Founder Group on the same terms.
- 9.3 In the event the Third Party purchaser refuses to purchase the Securities offered by the Existing Shareholders in such sale, the Transferring Shareholder shall not be entitled to Transfer his Securities to the said Third Party.

10. INFORMATION RIGHTS

- 10.1** Management and Information Rights: The Company will deliver to the Existing Shareholders annual financial statements and business reports, all in a format mutually acceptable to the Parties. The annual financial statements shall be audited and certified by an independent chartered accountant. The Company shall provide the Existing Shareholders with such other reports, books, records, documents and information relating to the Company as may be reasonably requested by them.

11. EXIT PROVISIONS

- 11.1** The Company and the Founder Group shall endeavour to facilitate an exit to the Existing Shareholders after the completion of 4 (four) years from the Closing Date (which period may be mutually extended by the Founder Group and the Existing Shareholders) through any of the following routes: (a) IPO; (b) Third Party Sale (strategic or financial); and (c) Buy-back by the Company (each an "**Exit**").

We wish to clarify that the omission in the form is solely on account of the technical restriction in the e-Form and does not reflect any intention to omit or modify the provisions approved by the shareholders.

The altered Articles of Association, incorporating all the clauses of the Shareholders Agreement are enclosed with the filing. The Company undertakes that the Articles of Association, as attached, shall prevail in their entirety.